

1.

CASE #	CASE NAME	HEARING NAME
CVRI2600044	OLAEZ VS CITISTAFF SOLUTIONS, INC	DEMURRER

Tentative Ruling:

Defendant Tigre USA, Inc.'s UNOPPOSED Demurrer to the First Amended Complaint (FAC) is sustained with leave to amend within 20 days.

REQUEST FOR JUDICIAL NOTICE

Pursuant to Evidence Code sections 452(d) and 453, the Court grants Defendant's Request for Judicial Notice of the First Amended Complaint (Exhibit A), which is a record of the court in the current action.

A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (CCP, § 430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) The court assumes the truth of all material facts which have been properly pleaded, of facts which may be inferred from those expressly pleaded, and of any material facts of which judicial notice has been requested and may be taken. (*Crowley v. Katleman* (1994) 8 Cal.4th 666, 672.) However, a demurrer does not admit contentions, deductions or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

The FAC is fundamentally defective because it fails to establish an employment relationship between Plaintiff and Tigre USA. In the FAC at paragraphs 2 and 3, Plaintiff identifies CitiStaff Solutions as his "legal employer" and Tigre USA as the "host worksite." Under California law, a "host worksite" is not a synonym for an "employer." To establish joint employer status, a plaintiff must plead specific facts demonstrating the defendant exercised control over wages, hours, or working conditions (*Martinez v. Combs* (2010) 49 Cal.4th 35). The FAC contains no such allegations, rendering all employment-dependent claims insufficient.

The *First Cause of Action* for Workplace Harassment (Govt. Code § 12940) fails as a matter of law. Administrative exhaustion is a jurisdictional prerequisite to filing a FEHA claim in Superior Court (*Govt. Code § 12965(b)*). The FAC contains no allegation that Plaintiff filed a complaint with the Civil Rights Department (CRD) or received a right-to-sue notice.

As to the *Second Cause of Action* for Intentional Infliction of Emotional Distress, the conduct alleged must be "outrageous" and "so extreme as to exceed all bounds of that usually tolerated in a civilized community" (*Hughes v. Pair* (2009) 46 Cal.4th 1035). The allegation that a manager "slapped" Plaintiff's back three times, while inappropriate,

does not meet this high threshold. Furthermore, the FAC fails to plead a basis for vicarious liability. An employer is not liable for an employee's intentional torts unless the conduct was within the scope of employment and foreseeable (*Lisa M. v. Henry Mayo Newhall Memorial Hospital* (1995) 12 Cal. 4th 291); the FAC provides no nexus between the manager's alleged actions and the enterprise of Tigre USA.

As to *Retaliation and Wrongful Termination* (5th & 10th COA), Plaintiff fails to establish a prima facie case for retaliation or wrongful termination. A necessary element for these claims is a "causal link" between a protected activity and an adverse employment action (*Akers v. County of San Diego* (2002) 95 Cal.App.4th 1441). The FAC fails to identify who terminated the Plaintiff, the date of termination, or facts showing the termination was motivated by Plaintiff's reports of misconduct.

The following causes of action are sustained due to the absence of a legal basis for relief in this forum:

CAUSE OF ACTION	LEGAL DEFICIENCY	STATUTORY/CASE LAW BASIS
3rd & 7th (Negligence/Workers' Comp)	Exclusive Remedy Rule; claims must be heard by the WCAB	Labor Code § 3602
4th (Unsafe Work Environment)	No private right of action (governed by Cal/OSHA)	Labor Code §§ 6300, 6401
6th (HIPAA)	No private right of action in State Court; must be filed with the Office for Civil Rights (OCR)	45 CFR Parts 160/164
8th (Lost Wages)	Derivative of failed employment/negligence claims	Labor Code § 3706
9th (Pain and Suffering)	Improperly pleaded as a COA (it is a measure of damages)	Civil Code § 3333

Regarding the Eighth Cause of Action, the claim fails because Tigre USA had no duty to secure workers' compensation insurance for an individual who was not its employee.

Plaintiff has filed no opposition to the Demurrer. Under California Rules of Court, rule 8.54(c), a failure to oppose a motion may be deemed a consent to the granting of said motion. Applying the ruling in *Herzberg v. County of Plumas* (2005) 133 Cal.App.4th 1, 20, the Court considers the lack of opposition an admission that the motion is meritorious and a waiver of any arguments in support of the pleading.

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CASE #	CASE NAME	HEARING NAME
CVRI2604622	CHIZO VS CHIZO	DEMURRER

Tentative Ruling: Hearing continued to 9/29/26.